



February 5, 2026

ENGROSSED SENATE BILL No. 92

DIGEST OF SB 92 (Updated February 4, 2026 12:41 pm - DI 106)

Citations Affected: IC 11-12; IC 34-6.

Synopsis: Community corrections trust funds. Authorizes a county that operates a community corrections program to establish a county community corrections trust fund (fund). Specifies the funding sources and permissible uses of the fund. Specifies reporting and auditing requirements relating to the administration of the fund. Makes technical corrections to a reference to community corrections programs located in the civil procedure law.

Effective: July 1, 2026.

**Clark, Niemeyer, Buck, Bohacek,
Dernulc, Tomes, Randolph Lonnie M,
Goode, Raatz**

(HOUSE SPONSORS — STEUERWALD, MCNAMARA, MAY, MOED)

December 9, 2025, read first time and referred to Committee on Local Government.
January 8, 2026, reported favorably — Do Pass; reassigned to Committee on Appropriations.

January 22, 2026, reported favorably — Do Pass.

January 26, 2026, read second time, ordered engrossed. Engrossed.

January 27, 2026, read third time, passed. Yeas 45, nays 1.

HOUSE ACTION

January 29, 2026, read first time and referred to Committee on Courts and Criminal Code.

February 5, 2026, amended, reported — Do Pass. Referred to Committee on Ways and Means pursuant to Rule 126.3.

ES 92—LS 6434/DI 92



February 5, 2026

Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

ENGROSSED SENATE BILL No. 92

A BILL FOR AN ACT to amend the Indiana Code concerning corrections.

Be it enacted by the General Assembly of the State of Indiana:

1 SECTION 1. IC 11-12-12 IS ADDED TO THE INDIANA CODE
2 AS A **NEW** CHAPTER TO READ AS FOLLOWS [EFFECTIVE
3 JULY 1, 2026]:

4 **Chapter 12. County Community Corrections Trust Funds**

5 **Sec. 1. As used in this chapter, "fund" refers to a county**
6 **community corrections trust fund established under section 2 of**
7 **this chapter.**

8 **Sec. 2. (a) A county that operates a community corrections**
9 **program may establish a county community corrections trust fund.**

10 **(b) The county auditor shall administer a fund established**
11 **under subsection (a). The county auditor shall deposit all proceeds**
12 **of commissary sales made within the county's community**
13 **corrections program into the fund.**

14 **(c) Money remaining in the fund at the end of a calendar year**
15 **does not revert to the county general fund.**

16 **Sec. 3. A fund established under section 2 of this chapter**
17 **consists of the following:**

ES 92—LS 6434/DI 92



(1) The proceeds from commissary sales deposited into the fund under section 2 of this chapter.

(2) Any amounts appropriated to the fund.

(3) Any grants or gifts received by the county that are designated for the purposes of the commissary or community corrections programming.

Sec. 4. Money in the fund may be used only for the following:

(1) The inventory and operations of the commissary.

(2) Rehabilitation and educational programming.

(3) Facility improvements directly tied to community corrections programming.

(4) Staff training and equipment.

Sec. 5. (a) Before March 1 of each year, the community corrections agency for a county that establishes a fund under section 2 of this chapter shall submit an annual report to the county fiscal body. The annual report must include the following information:

(1) The total amount of money deposited into the fund in the previous calendar year.

(2) The total amount of money expended from the fund in the previous calendar year.

(3) The balance of the fund on December 31 of the previous calendar year.

(b) An annual report submitted under this section may include a brief summary of how fund expenditures have supported community corrections programming or facility improvements in the previous calendar year.

(c) The community corrections agency shall also provide a copy of the annual report submitted under this section to the community corrections advisory board.

Sec. 6. The fund is subject to audit by the state board of accounts. The county auditor shall administer the fund in accordance with all applicable public record and government accounting standards.

SECTION 2. IC 34-6-2.1-155, AS ADDED BY P.L.186-2025, SECTION 176, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 155. "Political subdivision", for purposes of IC 34-12-3.5 and IC 34-13-3, means a:

(1) county;

(2) township;

(3) city;

(4) town;



- 1 (5) separate municipal corporation;
- 2 (6) special taxing district;
- 3 (7) state educational institution;
- 4 (8) city or county hospital;
- 5 (9) school corporation;
- 6 (10) board or commission of one (1) of the entities listed in
- 7 subdivisions (1) through (9);
- 8 (11) drug enforcement task force operated jointly by political
- 9 subdivisions;
- 10 (12) community ~~correctional service~~ **corrections** program
- 11 organized under ~~IC 12-12-1~~; **IC 11-12-1**; or
- 12 (13) solid waste management district established under IC 13-21
- 13 or IC 13-9.5-2 (before its repeal).



COMMITTEE REPORT

Mr. President: The Senate Committee on Local Government, to which was referred Senate Bill No. 92, has had the same under consideration and begs leave to report the same back to the Senate with the recommendation that said bill DO PASS and be reassigned to the Senate Committee on Appropriations.

(Reference is to SB 92 as introduced.)

BUCK, Chairperson

Committee Vote: Yeas 9, Nays 0

COMMITTEE REPORT

Mr. President: The Senate Committee on Appropriations, to which was referred Senate Bill No. 92, has had the same under consideration and begs leave to report the same back to the Senate with the recommendation that said bill DO PASS.

(Reference is to SB 92 as printed January 9, 2026.)

GARTEN, Chairperson

Committee Vote: Yeas 11, Nays 0

COMMITTEE REPORT

Mr. Speaker: Your Committee on Courts and Criminal Code, to which was referred Senate Bill 92, has had the same under consideration and begs leave to report the same back to the House with the recommendation that said bill be amended as follows:

Page 2, line 13, delete "December" and insert "**March**".

Page 2, line 18, after "in the" insert "**previous calendar year.**".

Page 2, delete line 19.

Page 2, line 20, after "in the" insert "**previous calendar year.**".

Page 2, delete line 21.

Page 2, line 22, delete "as of the date of the report." and insert "**on December 31 of the previous calendar year.**".

Page 2, line 26, delete "preceding twelve (12) months." and insert

ES 92—LS 6434/DI 92



"previous calendar year."

and when so amended that said bill do pass.

(Reference is to SB 92 as printed January 23, 2026.)

MCNAMARA

Committee Vote: yeas 13, nays 0.

